HARBOR POINT INSURANCE
Auto Claims · 77 Harbor Point Blvd, Riverton

Claim HP-26-7741
Policy HPA-4402917

April 5, 2027 · **VIA EMAIL AND CERTIFIED MAIL**

Elijah Thone, Esq.
LSH Law Group
500 Commerce St, Suite 1200
Riverton

Re: Written Demand for Arbitration — Uninsured/Underinsured Motorist Coverage
Claimant: John Doe · Named insured: Kevin Alvarez · Policy HPA-4402917 (2020 Ford Escape)
Claim HP-26-7741 · Date of loss: 02/06/2026 · UM limit $20,000 per person

Dear Mr. Thone:

We acknowledge Keystone Mutual Insurance's tender of its $10,000 bodily injury limit on behalf of Robert Smith at the March 18, 2027 mediation in *Doe v. Smith*, to which Harbor Point consented in writing, and your client's demand for the $20,000 limit of the UM/UIM coverage of the above policy, under which Mr. Doe qualifies as an occupant of the insured vehicle.

Harbor Point does not dispute coverage. We do not agree, however, as to the **amount of damages** Mr. Doe is legally entitled to recover. In particular, Mr. Doe sought no medical treatment of any kind for fourteen (14) days after the collision (February 6 to February 20, 2026), and his course of treatment was later interrupted for nineteen (19) days in April 2026. In our evaluation these gaps bear directly on the causal relationship and reasonableness of the treatment claimed, and on the value of the claim.

Accordingly, pursuant to the arbitration provision of the policy's Uninsured Motorists Coverage, Harbor Point hereby makes **written demand for arbitration** of the amount of damages. Harbor Point proposes that the matter be heard by a single neutral arbitrator, and proposes **Laura Whitcomb, Esq.**, who has confirmed her availability and has no conflict. Please let us know within fifteen (15) days whether your client agrees to Ms. Whitcomb. Each party will bear its own attorney's fees and expenses; the arbitrator's fee will be shared as the policy provides.

Because Cardinal State Mutual's UM coverage applies in excess of ours, we are copying Cardinal State and invite it to join the arbitration so that the amount of damages may be decided once, in one proceeding.

Nothing in this letter waives any term, condition or defense under the policy.

Sincerely,

Marcus Bell
Marcus Bell
Senior Claims Representative, UM/UIM
Harbor Point Insurance

cc: Cardinal State Mutual, Attn: Teresa Okafor (claim CS-26-20355) · Laura Whitcomb, Esq.

CARDINAL STATE MUTUAL
Personal Auto Claims · 1200 Cardinal Way, Millbrook

Claim CS-26-20355
Policy CSM-AU-5580213

April 12, 2027 · **VIA EMAIL**

Elijah Thone, Esq., LSH Law Group, 500 Commerce St, Suite 1200, Riverton
Marcus Bell, Harbor Point Insurance, 77 Harbor Point Blvd, Riverton
Laura Whitcomb, Esq., Whitcomb Arbitration & Mediation, 15 Riverside Plaza, Suite 600, Riverton

Re: **Joinder in Arbitration** — Claimant: John Doe · Named insured: Margaret Doe · Policy CSM-AU-5580213
Claim CS-26-20355 · Date of loss: 02/06/2026 · UM limit $10,000 per person

Dear Counsel and Mr. Bell:

Cardinal State Mutual has received Harbor Point Insurance's April 5, 2027 demand for arbitration. Cardinal State likewise disputes the amount of damages claimed by Mr. Doe, for the reasons stated in Harbor Point's demand, and **joins** in the arbitration on the following terms, which Mr. Thone has confirmed are acceptable to his client:

1. The claims against Harbor Point and Cardinal State will be heard in **one consolidated arbitration** before Laura Whitcomb, Esq.
2. The arbitrator will determine the total amount of damages Mr. Doe is legally entitled to recover arising from the February 6, 2026 collision. The award will be **binding** on all parties.
3. Any award will be applied first to Harbor Point's coverage, up to its $20,000 limit, and then to Cardinal State's coverage, which is excess, up to its $10,000 limit, after credit for the $10,000 bodily injury payment by Keystone Mutual. No award may exceed the available limits.
4. Each party bears its own fees and expenses. The arbitrator's fee will be divided equally between Harbor Point and Cardinal State.

Please treat this letter as Cardinal State's written joinder. Cardinal State reserves all other rights under its policy.

Sincerely,

Teresa Okafor

Teresa Okafor
Claims Specialist
Cardinal State Mutual

WHITCOMB ARBITRATION & MEDIATION

Laura Whitcomb, Esq. · 15 Riverside Plaza, Suite 600, Riverton · (555) 010-9045 File WAM-27-118

UNINSURED/UNDERINSURED MOTORIST ARBITRATION
JOHN DOE, Claimant, v. **HARBOR POINT INSURANCE** (Policy HPA-4402917, Claim HP-26-7741) and **CARDINAL STATE MUTUAL** (Policy CSM-AU-5580213, Claim CS-26-20355), Respondents
Consolidated · Binding · Date of loss 02/06/2026

NOTICE OF HEARING AND SCHEDULING ORDER NO. 1

Issued April 26, 2027

Following my appointment by agreement of the parties (Harbor Point demand of April 5, 2027; Cardinal State joinder of April 12, 2027), and a scheduling call with counsel and the carrier representatives on April 23, 2027, NOTICE IS GIVEN and it is ORDERED as follows:

No.	Event	Date
1	**Hearing** — 9:00 a.m., Whitcomb Arbitration & Mediation, 15 Riverside Plaza, Suite 600, Riverton. One day reserved.	**Tuesday, June 22, 2027**
2	Exchange of exhibits and witness lists — twenty (20) days before the hearing; exhibits pre-marked (Claimant: C-1 et seq.; Respondents: R-1 et seq.), with one copy to the arbitrator	Wednesday, June 2, 2027
3	Arbitration briefs — not to exceed fifteen (15) pages, simultaneous exchange, ten (10) days before the hearing	June 12, 2027

1. **Issue.** The sole issue is the amount of damages Claimant is legally entitled to recover for bodily injury arising from the February 6, 2026 collision. Coverage and Claimant's status as an insured are not disputed.
2. **Evidence.** Medical records and bills may be offered by certified copy or by affidavit of the custodian without live testimony, if exchanged by the exhibit deadline. Objections to any exhibit must be served in writing within five (5) days after the exchange.
3. **Witnesses.** Witnesses may testify in person or, with notice in the witness list, by videoconference. Any expert testifying live must be identified on the witness list with a current curriculum vitae.
4. **Record.** No transcript will be made unless a party arranges and pays for a court reporter and gives notice to all parties.
5. **Award.** A reasoned written award will issue within thirty (30) days after the close of the hearing. The award is binding on the parties as agreed and will be applied to the available limits as stated in Cardinal State's joinder of April 12, 2027.
6. **Continuances.** The hearing date will not be continued except for good cause shown by written request at least fourteen (14) days in advance.

Laura Whitcomb

Laura Whitcomb, Esq., Arbitrator · April 26, 2027

Distribution: Elijah Thone, Esq., LSH Law Group (for Claimant) · Marcus Bell, Harbor Point Insurance · Teresa Okafor, Cardinal State Mutual